

Tentative Rulings for Department 503

Begin at the next page

(49)

Tentative Ruling

Re: **City of Fresno v. Wat Phouthapathane**
Superior Court Case No. 26CECG00523

Hearing Date: September 15, 2026 (Dept. 503)

Motion: By Plaintiff City of Fresno for Prejudgment Possession

Tentative Ruling:

To deny without prejudice. (Code Civ. Proc., § 1255.410, subd. (b) & (d)(1)(B).)

Explanation:

Plaintiff City of Fresno ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410.

Plaintiff was required to serve a copy of the motion on the record owner of the property and its occupants at least 60 or, potentially, 90 days before the hearing of this motion. (Code Civ. Proc., § 1255.410, subd. (b).) Plaintiff has filed no proof of service or other evidence they have done so. Additionally, Plaintiff is required to make a deposit that is compliant with the requisite statutes. (Code Civ. Proc., § 1255.410, subd. (d)(1)(B).) The deposit requires a written report from the appraiser. (Code Civ. Proc., § 1255.010, subd. (b).) Plaintiff did not provide a copy of the appraiser's report. Accordingly, Plaintiff's motion for prejudgment possession is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/14/26.
(Judge's initials) (Date)